

OREGON
UTILITY BILL-BACK ADDENDUM

DATE _____ PROPERTY NAME / NUMBER _____
 RESIDENT NAME(S) _____

 UNIT NUMBER _____ STREET ADDRESS _____
 CITY _____ STATE _____ ZIP _____

Resident shall reimburse Owner/Agent for the following Utilities and accompanying public service charges, which may include a) a charge for the Resident's dwelling unit, and/or b) a charge for the utility benefiting a common area:

ALLOCATION KEY: Owner/Agent hereby discloses and describes its current manner (Method) of allocating charges to residents if the provider's bill to the landlord covers multiple tenants. The Method is not a contractual term and may be changed at any time by Owner/Agent.

Ratio Billing Method Key:

1. Flat Fee of \$ _____. Flat fees are determined by estimating the average annual cost to each household. If provided, Owner/Agent also determines flat fees on the following basis:

2. Submetering. Actual use of a utility is individually submetered at the unit and Resident is charged based upon submetered actual use of the utility.

3. Ratio Utility Billing Method #1 (insert formula):

4. Ratio Utility Billing Method #2 (insert formula):

5. Other (insert description):

Electricity to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Electricity:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Electricity provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Water to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Water:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Water provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Sewer/Wastewater/Stormwater to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Common Area Sewer/Wastewater/Stormwater:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Sewer/Wastewater/Stormwater provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Garbage to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Common Area Garbage:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Water provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Heating to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Common Area Heating:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Electricity provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Gas/Propane to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Common Area Gas/Propane:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice):

Gas/Propane provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Internet to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Internet:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Internet provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Oil to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Oil:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Oil provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Cable TV, Direct Satellite or other Video Subscription to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Cable TV, Direct Satellite or other Video Subscription:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Cable TV, Direct Satellite or other Video Subscription provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Other Utility _____ (describe) to Dwelling:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Other Utility:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Other Utility _____ **(describe) to Dwelling:**

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Other Utility:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

Other Utility _____ **(describe) to Dwelling:**

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Common Area Other Utility:

☐ Owner/Agent pays provider directly and bills residents under the following method (if blank, see utility invoice): _____

Provider assesses and charges the property in the following manner (if blank, see explanation of assessment in your utility invoice):

ADDITIONAL TERMS:

1. Resident's monthly rent under the Rental Agreement does not include a charge for the Utilities.
2. Residents shall timely pay any invoice assessed by or on behalf of Owner/Agent for Utilities. Owner/Agent may utilize a third-party vendor for utility billing and collection. Owner/Agent may deliver bills for Utilities by electronic means to any electronic address including but not limited to any Resident's email address or Resident portal (if provided by Owner/Agent).
3. Resident represents that all occupants that will be residing in the Unit are accurately identified in the Rental Agreement. Resident agrees to promptly notify Owner/Agent of any change in such number of occupants.
4. Failure of Resident to pay Utility Charges to Owner/Agent when due is a material non-compliance with the Rental Agreement.
5. If Resident fails to pay any Utility Charges to Owner/Agent or its billing service within thirty (30) days of the date the bill is delivered to Resident, Owner/Agent may charge Resident a non-compliance fee as provided in the Rental Agreement. Failure to pay a non-compliance fee is a material non-compliance with the Rental Agreement.
6. The manner in which Utilities are allocated among Residents is subject to Owner/Agent's sole discretion and may be changed at any time, regardless of whether the change increases the amount billed to Resident. Resident shall pay to Owner/Agent a utility or service charge or a public service charge that has been billed by a utility or service provider to the Owner/Agent for utility or service provided directly, or for a public service provided indirectly, to the tenant's dwelling unit or to a common area available to the tenant as part of the tenancy as described above by any method selected by Owner/Agent so long as the cumulative charges to all residents at the property do not exceed the annual cumulative charges assessed by the utility or service provider(s) to Owner/Agent.
7. If Resident moves into or out of the Unit on a date other than the first of the month, Resident will be charged for the full period of time that Resident was living in, occupying, or responsible for payment of rent or the Utilities for the Unit. If Resident breaks or breaches the Rental Agreement, Resident will be responsible for all charges for the Utilities through the time it takes for Owner/Agent to retake possession of the Unit, regardless of whether Resident is still occupying the Unit. When the Resident vacates the Unit, all charges for the Utilities must be paid by the move out date. To the extent permitted by law, any unpaid charges for the Utilities at the time of the move out date will be deducted from the security deposit being held by Owner/Agent under the Rental Agreement.
8. Resident understands that no representation or warranty by Owner/Agent regarding estimated or actual Utility Bills shall be enforceable unless set forth in a writing and signed by Owner/Agent.
9. Owner/Agent is not liable for any losses or damages Resident incurs as the result of outages, interruptions, or fluctuations in utilities provided to the Unit unless such loss or damage was the direct result of negligence or willful misconduct of

Owner/Agent. Resident releases Owner/Agent from any and all such claims and waives any claims for offset or reduction of rent or diminished rental value of the Unit due to such outages, interruptions, or fluctuations.

10. Resident understands and agrees that continued occupancy of the Unit when electricity, natural gas, water, or sewer services have been discontinued is hazardous. Resident agrees not to terminate, cut off, interrupt, interfere with, or discontinue supplying electricity, natural gas, water or sewer services to the Unit. Resident shall not tamper with, adjust, or disconnect any utility submetering system or device. Violation of this provision is material breach or default of this addendum and the Rental Agreement and shall entitle Owner/Agent to exercise all remedies available under the Rental Agreement.
11. Resident agrees that Resident may, upon sixty (60) days prior written notice from Owner/Agent to Resident, begin receiving a bill for additional public service charges adopted within the previous six (6) months, at which time such additional utilities and services shall for all purposes be included in the term "Utilities."
12. If any provision of this Addendum or the Rental Agreement is invalid or unenforceable under applicable law, such provision shall be ineffective to the extent of such invalidity or unenforceability only without invalidating or otherwise affecting the remainder of this addendum or the Rental Agreement. Except as specifically stated herein, all other terms and conditions of the Rental Agreement shall remain unchanged. In the event of any conflict between the terms of this Addendum and the terms of the Rental Agreement, the terms of this Addendum shall control.

ADDITIONAL TERMS (continued):

X	_____	_____
RESIDENT		DATE
X	_____	_____
RESIDENT		DATE
X	_____	_____
RESIDENT		DATE

X	_____	_____
RESIDENT		DATE
X	_____	_____
RESIDENT		DATE
X	_____	_____
RESIDENT		DATE
X	_____	_____
OWNER/AGENT		DATE